



Artiom Kovnatsky <skovnats@gmail.com>

URGENT Addendum to DSAR: Scope Expansion & Algorithmic Collusion Investigation

1 message

Artiom Kovnatsky <skovnats@gmail.com>

Mon, Jun 29, 2026 at 9:00 AM

To: Blaine Support <support@osf.io>

Cc: contact@cos.io

Dear OSF Compliance and DPO Team,

In reference to my formal notice and comprehensive data access request under Article 15 GDPR, this is an official addendum to prevent the negligent concealment of evidence. You are hereby strictly required to ensure full compliance by adhering to the following integration:

1. **Verification of Network Infrastructure:** Your final disclosure must include all automated mitigation logs, Bot Management scores, and web application firewall (WAF) routing entries handled by Cloudflare, Inc., or any other third-party security infrastructure deployed on your platform concerning my account (skovnats) and the SVE framework.
2. **Proactive Judicial Assistance:** In line with your Duty of Candor, you are requested to exercise your professional expertise to unearth and provide any material traces or cross-platform blacklists that have led to the pre-emptive deactivation of my projects. Do not rely on formalistic technical omissions; provide the complete truth required to assist the court.

Third-Party Data Interoperability Authorization:

In the event that your platform utilized, shared, or relied upon external threat intelligence feeds, corporate vendor infrastructure (including, but not limited to Cloudflare, Inc.), or third-party automated moderation engines in connection with my identity or the SVE framework, I hereby grant explicit, irrevocable written authorization under the GDPR to utilize my personal data to retrieve the exhaustive, unredacted log history from said third parties. You are legally required to demand these logs under your processor oversight obligations and immediately transmit the complete unredacted volume to me.

Sincerely,

--

Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder [S.V.E.](https://zenodo.org/communities/sve) | <https://zenodo.org/communities/sve>

P.S. #1

For the attention of the Data Protection Officer (DPO), internal compliance monitors, and mid-level legal counsel:

Please be reminded that under EU law, any attempt to circumvent the fundamental "spirit" of the GDPR by abusing procedural technicalities, delivering curated/partial datasets, or concealing the involvement of third parties constitutes a severe structural violation. Under the EU General Data Protection Regulation and relevant national jurisdictions, personal executive liability—including potential criminal exposure for obstruction of justice and willful destruction/falsification of evidence—cannot be shielded by corporate indemnity policies if compliance officers knowingly facilitate the concealment of unlawful processing.

Furthermore, complying with non-statutory, external, or covert third-party directives to restrict this disclosure directly breaches your professional obligations and may trigger reporting mechanisms under the EU Whistleblower Directive. The only legally sound, risk-mitigating path for all individuals handling this file is absolute transparency: delivering the exhaustive, unredacted data volume strictly in accordance with the law.

As these services are actively targeted at and processed within the European Single Market, your designated EU Representative and EU Data Protection Officer bear direct jurisdictional and strict liability under Article 27 and Chapter VIII of the GDPR. Any attempt to redirect this statutory enforcement to non-EU corporate entities or external US counsel to evade compliance will be documented as an independent, structural breach of the regulation.

P.S. #2

For the avoidance of doubt, if any ambiguities, uncertainties, or interpretive questions exist regarding the wording, specific intent, or legal scope of this notice, you are hereby requested to seek immediate clarification. I will provide an explicit clarification within 72 hours of receiving a formal inquiry from your DPO or authorized legal counsel.

Should you fail to request such clarification within a reasonable timeframe prior to the deadline, it shall be conclusively presumed under the principles of good faith and procedural estoppel that the entire content has been fully understood in its original, intended sense. Any subsequent claims of ambiguity, misinterpretation, or vagueness will be strictly rejected as procedurally barred and waived. Consequently, all legal risks, interpretive liabilities, and subsequent enforcement responsibilities shall rest

solely on your organization.

P.S. #3

Out of an abundance of caution and in adherence to the fundamental principles of justice, transparency, and the Duty of Candor, you are hereby requested to exercise your professional expertise proactively. If your systems contain any additional, highly relevant metadata, communication logs, or architectural traces from 2025-2026 that are material to establishing the absolute truth of this matter—even if such specific technical categories were not explicitly itemized in my prior text due to asymmetrical information—you are required by the spirit of EU law not to withhold them.

Any passive concealment of critical evidence under the guise of narrow, literal interpretation will be documented as bad faith and an intentional obstruction of impending judicial proceedings. I call upon your executive leadership and compliance monitors to actively assist the Court, demonstrate institutional integrity, and ensure that your infrastructure is not utilized to shield structural violations of law.

On Fri, Jun 26, 2026 at 11:11 AM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Berlin, 25 June 2026 Center for Open Science, Inc., 6218 Georgia Avenue NW, Suite #1, Unit 3189, Washington, DC 20011, USA

Dear OSF / Center for Open Science Privacy Team,

I am the data subject and account holder skovnats@gmail.com (ORCID 0009-0002-4357-4498). The substantive subject-matter of this request is the pre-emptive deactivation of my OSF account in early April 2026, which occurred prior to any upload of any file, project, registration, or preprint by me to the platform, and which was characterised as a "SPAM" determination.

Article 27 GDPR — representative in the Union. Please identify your designated representative in the Union (name and contact address). If no such representative has been designated, please confirm this expressly. The absence of a designated Article 27 representative would itself constitute an infringement of the GDPR, which I reserve the right to raise with the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI).

Part A — Request under Article 15 GDPR Pursuant to Article 15(1) GDPR, I request access to my personal data and the following information:

- The purposes of processing and categories of personal data concerned, including access logs, moderation records, all signals/scores applied, and third-party reputation signals consulted in respect of my account/IP.
- Legal basis — identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal

data, not merely the categories of recipients. I therefore request the specific identities.

- Where the personal data are not collected from me directly, any available information as to their source (Article 15(1)(g) GDPR).
- Meaningful information about the logic involved in automated decision-making (Article 15(1)(h) and 22(3) GDPR), particularly regarding any IP-address/CIDR, email-address, or external-identifier reputation signal applied.

Part B — Request under Article 17 DSA The deactivation of my account constitutes a suspension of the provision of the service (Article 17(1)(b) DSA). I request a written statement of reasons containing facts relied upon, information on automated means, legal grounds, and the PUID. The reinstatement of my account does not discharge your obligation to provide a statement of reasons under Art. 17(3) DSA, nor to answer my Art. 15 GDPR request within Art. 12(3) GDPR; I renew both.

I hereby formally submit a complaint under Article 20 DSA against the deactivation.

Specific items requested

- (a) The internal record of actions applied to the account in March-April 2026, with timestamps (UTC).
- (b) The identity, version, and operating description of any filters, heuristics, or rules whose output contributed to the action.
- (c) Any IP-address or CIDR-neighbourhood reputation signal consulted, including source and value.
- (d) Any email-address reputation signal consulted.
- (e) Records of human review that preceded the deactivation and any subsequent review.
- (f) The complete record of my form submission of 10 April 2026 and internal notes.
- (g) The Statement of Reasons under Article 17 DSA and its PUID.
- (h) The complete output of the anti-abuse / spam classifier(s) applied, including: (i) the specific category label, the severity/risk score, and the probability or score threshold triggered. As my OSF account held no uploaded content at the time of the flag, items (h)-(j) apply to the account/identifier/IP signal(s) that triggered the flag and to the human-review and procedure records; the commit/file, fork, and download items are inapplicable.
- (i) The human-review log and system audit trail.
- (j) Standard procedure and benchmarks for automated abuse/spam detections

of this category.

- (k) Third-party, governmental, and law-enforcement involvement (Art. 15(1)(c) and (g) GDPR; Art. 16 DSA). Please confirm whether the action was triggered by, contributed to by, or accompanied by any communication from a third party. If so, provide the timestamp, identity, legal basis, and specific processing requested.
- **(o) Data Protection Impact Assessment (Art. 35 GDPR).** Please provide the non-confidential summary or relevant excerpts of the Data Protection Impact Assessment (DPIA) conducted for the automated abuse-detection, spam-filtering, and account-flagging systems applied to my account. I specifically request the findings concerning the assessed risks, error rates, and mitigation measures regarding false-positive restrictions.

(p) Data Portability (Art. 20 GDPR). Please provide a machine-readable export (e.g., in JSON or XML format) of the exact state of my account metadata—and, where applicable, repository metadata—during the exact period the restriction was active. This export must include all internal database flags, visibility states, system tags, and moderation labels assigned to the account at that time.

(q) Systemic Error Rates and Proportionality (Art. 15 and 23 DSA). To enable an assessment of the proportionality and diligence of the automated measures applied, please provide the specific statistical error rate (false-positive rate) of the exact classifier, filter, or rule version that triggered the restriction on my account, as evaluated in your most recent quality assurance, algorithm training, or systemic risk assessments.

Please provide the response in a commonly used electronic form within one month of receipt.

P.S.

Rule of Interpretation in the Spirit of the Law [for all documents-requests]

Should any technical or legal terms used in the enclosed requests allow for multiple interpretations, I demand that you strictly apply the interpretation that most fully satisfies the spirit of the law (IFG, DSA, GDPR), the principle of transparency, and the maximum protection of human rights. Any deliberate exploitation of definitional gaps to withhold data will be treated as bad-faith obstruction of the truth.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Thu, Jun 25, 2026 at 11:10 PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Dear OSF / Center for Open Science Team,

I am the holder of the OSF account skovnats@gmail.com, which was deactivated and flagged as „SPAM“ in early April 2026, before any file, project, registration or preprint was uploaded. I refer to my Art. 15 GDPR / Art. 17 DSA request of 27 May 2026 and to support ticket(s) including the form I submitted on 10 April 2026.

I am assessing legal proceedings in connection with that action. I therefore formally request that you preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the flagging decision, in particular:

- (a) all access and registration records (incl. email, ORCID 0009-0002-4357-4498) with timestamps;
- (b) all automated filter/classifier outputs, scores, thresholds, category labels and rule identifiers applied, with the exact UTC start and end timestamps of the deactivation;
- (c) any IP/CIDR-neighbourhood, email-address or external-identifier reputation signal consulted, including source and value returned;
- (d) all human-review records;
- (e) all internal tickets, notes and communications relating to the flag and to my 10 April 2026 form;
- (f) the statement of reasons under Art. 17 DSA and its Transparency-Database identifier (PUID).
- + Other relevant data/metadata not mentioned.

Legal basis: the records are relevant to contemplated proceedings; under German civil procedure, destruction of evidence whose relevance has been notified (Beweisvereitelung) permits adverse inferences and may reverse the burden of proof. I also invoke Art. 18 GDPR (restriction of processing) so that these records are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This is without prejudice to my pending Art. 15 GDPR / Art. 17 DSA request and all further rights.

Yours sincerely,

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Regards | MfG

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On Sat, Apr 18, 2026 at 1:10PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

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Thnx.

KR

AK.

On Fri, Apr 10, 2026 at 5:52PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Dear OSF Support Team,

Thank you for your response. As instructed, I have completed the "**Account Disabled or Falsely Flagged as SPAM**" reporting form. Please find the screenshots of the submitted form attached to this email for your records.

Regarding this case, I require clarification on the following points to understand the nature of this "anomaly" in the context of my professional and scientific work:

1. **Pre-emptive Flagging:** My account was deactivated before a single file, project, or preprint was uploaded. On what technical or behavioral grounds was a clean account flagged as "SPAM" prior to any platform interaction?
2. **Origin of Action:** Was this deactivation triggered by an automated heuristic (algorithmic) or was it a manual intervention by a moderator?
3. **Procedural Delay:** Your initial automated response promised a resolution within 48–72 hours. Why did it take **over 38 days** and a second reminder to receive this follow-up?
4. **Institutional Standing:** Please note that this account represents a registered German business entity (**Wirtschafts-ID: DE405667512**). Treating a verified scientific and commercial ID as "SPAM" without cause or communication constitutes a significant disruption to my professional activities.

Under **GDPR (DSGVO) Article 15**, I also reserve the right to request access to the specific data and logic used to make this automated decision regarding my account status.

I look forward to your response within the stated 48–72 hour window.

Best regards,

Dr. Artiom Kohnatsky

*Independent Researcher | Systems Architect Wirtschafts-ID: DE405667512
(Berlin, Germany)*

Account Disabled or Falsely Flagged as SPAM

The OSF is always growing and developing. One of those areas of development is our efforts against SPAM. The OSF uses many fluid SPAM filters, taking countless factors into account, and are constantly evolving with trends in the dark world of SPAM. Unfortunately, because we take this seriously, some actual OSF users can get caught in these spam filters. If you believe your account has been wrongly deactivated, please fill out this form below and we will investigate your account.

artiom.kovnatsky@gmail.com [Switch account](#) Draft saved

* Indicates required question

Your name *

Dr. Artiom Kovnatsky

What is your ORCID

0009-0002-4357-4498

Are you able to log in to your account? *

☐ Yes

☒ No

URL link to your flagged or deactivated material

Account-level deactivation. No materials uploaded yet (Account: skovnats or skovnats@gmail.com)

URL link to your flagged or deactivated material

Account-level deactivation. No materials uploaded yet (Account: skovnats or skovnats@gmail.com)

Your email address: *

artiomkovnatsky@gmail.me

Provide a quick 5 sentence summary of the Research you are involved in. *

1. My research involves the development of Systemic Verification Engineering (S.V.E.), a methodology designed to audit systems and reduce hallucinations in Large Language Models.
2. I am currently proposing VKB-Training (Verified Knowledge Base Training), which introduces epistemic metadata tags to large datasets to differentiate between facts, hypotheses, and models.
3. This work aims to establish a logically consistent and transparent AI infrastructure by integrating formal logical filters into the training pipeline.
4. As an independent researcher based in Berlin, I am utilizing OSF as a repository for preprints and open-source methodologies.
5. My academic background and ongoing submissions (e.g., arXiv:submit/7445251) require a verified platform for long-term archival standards.

[Submit](#) [Clear form](#)

Never submit passwords through Google Forms.

This form was created inside of Center for Open Science - [Contact form owner](#)

Does this form look suspicious? [Report](#)

Google Forms

On Fri, Apr 10, 2026 at 3:46 PM Blaine Support <support@osf.io> wrote:

Hello,

Thank you for reaching out to the OSF support team! We investigate reported cases of OSF users being accidentally flagged or deactivated on a case-by-case base. If you have an account or material that has been flagged as SPAM or deactivated please report your case here: [Account Disabled or Falsely Flagged as SPAM reporting](#). Cases are reviewed within 48 to 72 hours.

Thank you,

How would you rate my reply?

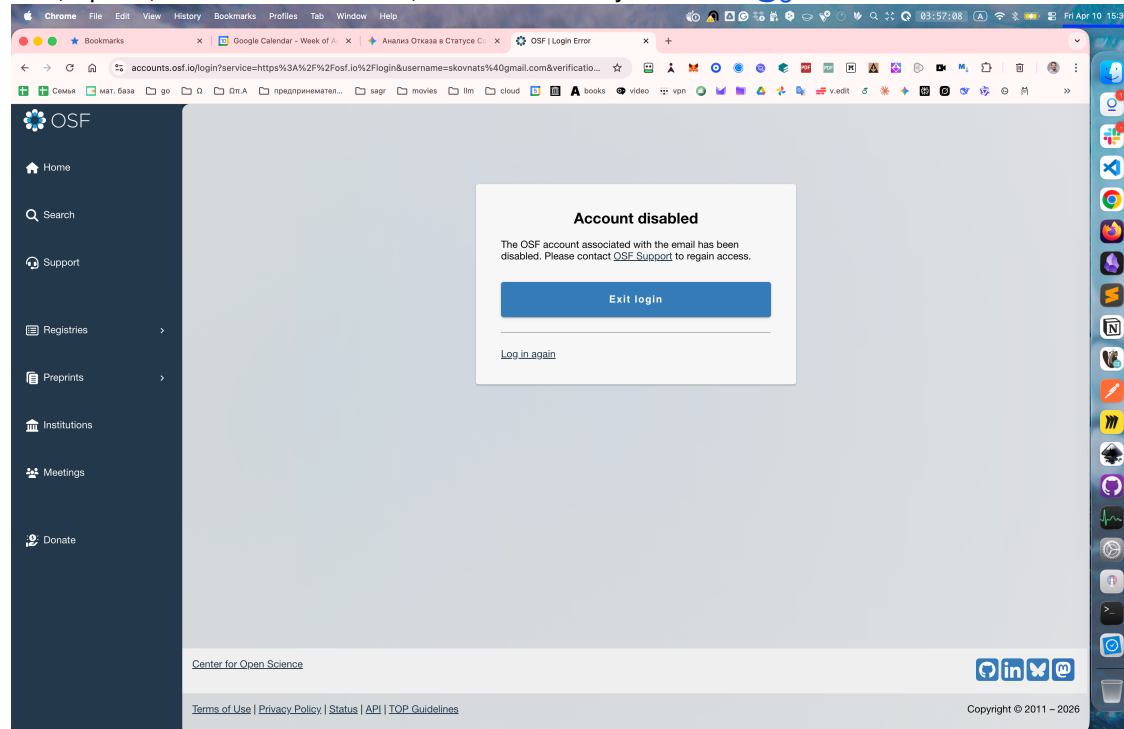
Great Okay Not Good

--

Blaine

support@osf.io

On Fri, Apr 10, 2026 at 9:42 AM EDT, Artiom Kovnatsky <skovnats@gmail.com> wrote:



Hello,

Could you please unblock the account?

btw, what is the reason for blocking? I have not put anything to the OSF platform yet or?

Thnx!

Artiom Kovnatsky

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Regards,

Artiom Kovnatsky

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Regards,

Artiom Kovnatsky

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Regards | MfG

Dr. Artiom A. Kovnatsky

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